

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

June 9, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #25, 26, 35(a)(b), 36(c), 37(a)(c)(d)(e) and 38(a) would be removed from the Consent Agenda. Mr. Collins moved to approve the remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON MAY 27, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JUNE 2, 2008. Motion (per consent agenda) carried.

Mr. Brown declared a conflict of interest (business interest in Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Upon inquiry, Barb Dorr, City Treasurer, reviewed information available for vouchers payable to Ameri-Tech HVAC Services (\$11,375.00), water treatment equipment at Ice and Events Center, and Ayers Associates, Inc. (\$48,652.43), Clear Creek wetland design and Dry Creek-Sheridan Reach Flood Control project. Upon inquiry regarding the Clear Creek wetland design, Rick Parish, Director of Parks and Recreation Dept., provided information on the status of the master plan for the David R. Romero South Cheyenne Community Park. Upon further inquiry, Ms. Dorr reviewed information available for vouchers payable to: Cheyenne Concrete Specialists (\$19,095.00), completion of concrete work at the Airport Golf Course; Albert R. Bennett Investigations, LLC (\$160.00), Police Dept. clandestine lab training, and JP Morgan Chase (\$54,765.01), promoter proceeds for World Wrestling Entertainment event held at the Ice and Events Center. Upon inquiry, Ms. Dorr and Ken Lewis, City Engineer, clarified a voucher payable to Union Pacific Railroad (\$5,000.00) was pursuant to Contract #4505, storm sewer crossing for Norris Viaduct project, and noted other payments to UPRR will be forthcoming due to contractual obligations. Motion carried. Voting "yes" – all members of the governing body present in Council

Chambers with the exception of Mr. Laybourn voting “no”. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Spiker opened a public meeting to discuss the submission of a grant application to the Federal Transit Administration, an operating administration of the United States Department of Transportation, for federal transportation assistance as authorized by 49 U.S.C. §5307, for approximately \$1,083,348.00 in federal funds. Joe Dougherty, Transit Director, explained how funds would be utilized and local funding matches through the City, contracts and grants, and program income, resulting in a total income amount of \$1,966,993.00. There being no further comments or input and purpose of the public meeting having been met, Mayor Spiker closed the public meeting.

Mayor Spiker opened a public hearing to elicit public comment on a proposed First Mortgage Revenue Bond to be issued by Laramie County, WY, in an amount not to exceed \$4,150,000.00 on behalf of Peak Wellness Center, Inc., a Wyoming nonprofit corporation, for the purpose of refinancing an outstanding loan, providing funds for additional remodeling and furnishing of a facility located at 510 W. 29th St., Cheyenne, WY, for use as a clinic to house the Youth Services Division and administrative offices for Peak Wellness Center, Inc., and paying certain costs incidental to the authorization, issuance and sale of the bond. Barbara Bonds, Freudenthal and Bonds PC (law firm), reviewed past actions before the governing body relative to the proposed bond and explained circumstances that have delayed the project. She advised although the County, not the City, will be the bond issuer, the Internal Revenue Service requires the City, as the primary governmental entity having jurisdiction over the area, be notified of and provide approval for issuance of the bond. She reviewed the status of bond actions before the County Commissioners and clarified a proposed City resolution does not obligate the City legally or financially. Dr. David Birney, Executive Director, Peak Wellness Center, reviewed the project generally and stated bond issuance will allow Peak to expand and provide more services to the community. Upon inquiry, Mr. Birney advised demand for community youth services continues to increase, and discussed issues affecting services. There being no further comments or input and purpose of the public hearing having been met, Mayor Spiker closed the public hearing.

Mayor Spiker opened a public meeting to discuss the Cheyenne Transit Program’s boarding transition to signed “Designated Boarding Areas,” amending the fixed routes of Cheyenne transit buses, and recognizing the Five-Year Transportation Development Plan, as a flexible planning tool. Joe Dougherty, Transit Director, provided a report on the updated routes and changes to the routes involving a transition to designated boarding areas. He explained that currently Transit utilizes a “wide open boarding” system which allows individuals to board the bus anywhere along the route that is determined that safe boarding could be provided, and stated as the system has grown there have become more and more demands for stops. Mr. Dougherty reviewed a map of Transit service areas, proposed changes, routes and number of designated boarding areas assigned to each route, and stated the proposed changes are posted on the City’s website and in various community locations for the public’s information. He noted the proposed changes are still open to recommendations. Upon inquiry, Mr. Dougherty provided information on curb-to-curb service for individuals with special needs, potential future pilot programs, number of diesel vs. gasoline buses in service, and ridership levels and affiliated costs. There being no further comments or input and purpose of the public meeting having been met, Mayor Spiker closed the public meeting.

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED BETWEEN WARREN AVENUE AND HOUSE AVENUE, BLOCK 139, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN WARREN AND HOUSE AVENUES, AND E. 24TH AND 25TH STREETS).” Upon inquiry, Mayor Spiker advised the purpose of the ordinance is to abandon an alley between Warren Ave. and House Ave. at the request of the hospital. Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Concerns were expressed with beautification issues, PlanCheyenne design and landscaping elements relative to other development projects, and consistency in landscaping requirements for parking lots. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”. (#3803)

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED BETWEEN PEBRICAN AVENUE AND SEYMOUR AVENUE, BLOCK 787, SOUTH CHEYENNE, CHEYENNE, WYOMING (LOCATED BETWEEN PEBRICAN AND SEYMOUR AVENUES AND BETWEEN E. 1ST AND 2ND STREETS).” Mr. Collins moved to approve on third and final reading with staff recommendation #1, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3804)

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED NORTHERLY AND WESTERLY OF LOT 5, BLOCK ONE, BRUTSMAN SUBDIVISION, CHEYENNE, WYOMING (LOCATED ALONG THE WESTERLY SIDE LOT LINE OF LOT 5, NORTH OF AND ADJACENT TO LARAMIE ST., WEST OF PIERCE AVE.).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3805)

“AN ORDINANCE AMENDING SECTIONS 40.030 AND 40.035 IN ARTICLE IV - COMMUNITY FACILITY FEES OF THE CHEYENNE-LARAMIE COUNTY SUBDIVISION DEVELOPMENT REGULATIONS 2000.” Reporting for Finance Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#3806)

“AN ORDINANCE AMENDING THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Upon inquiry, Barb Dorr, City Treasurer, provided information on Sanitation Division’s budgeted revenues vs. expenditures and general fund budget appropriation. Discussion followed on expenditures and revenues for the Sanitation Division, and application of sanitation fees toward the general fund. Upon inquiry, Mike Abel, Public Works Director, advised funding sources for different components of solid waste and curb-side recycling have not been fully identified; reviewed various expenses involved in transporting household waste to Ault, CO, stating it is hoped that by diverting household waste the current landfill life span will be increased, and discussed fees and disposition of recyclable items that are being transported to Denver. Upon inquiry, Ms. Dorr advised the amount budgeted for Sanitation does not include incidental costs, such as fuel and vehicle maintenance and repairs, and provided information on fuel costs and various revenue/expense funds and budget line items affiliated with recycling, landfill, vehicle/equipment lease purchases and landfill well monitoring. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case

and Mr. Laybourn voting “no”. (#3807)

“AN ORDINANCE APPROPRIATING MONEYS FOR THE CITY OF CHEYENNE, WY FOR THE VARIOUS PURPOSES IN CONDUCTING THE MUNICIPAL GOVERNMENT OF SAID CITY AND FIXING THE AMOUNT OF GENERAL AND SPECIAL TAXES AS PART OF THE REVENUE REQUIRED TO MEET THE SAID APPROPRIATION, ALL FOR THE FISCAL YEAR BEGINNING JULY 1, 2008, AND ENDING JUNE 30, 2009.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Segrave moved to postpone to June 16, 2008, date of the governing body’s special budget session, seconded by Mr. Brown. It was noted a postponement will meet compliance with state statute requirements for the time frame in which to act upon the budget. Motion to postpone carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEPTIC WASTE DUMP RATES AND LIQUID COMMERCIAL WASTE RATES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on second reading, seconded by Mr. Brown. Upon inquiry, Tim Wilson, BOPU Director, clarified that the ordinance, as well as the next four ordinances on the agenda, provide for fee increases pursuant to the cost of living adjustment (COLA). He advised the 4.1% increases are specific to each ordinance topic and are pursuant to the All Urban Consumer Price Index, and discussed the different components included in the Index relative to utilities, sanitation, etc. Comments followed on utilizing the Index percentage vs. actual annual cost of providing services. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES, AND PENALTIES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED TAP FEES, SYSTEM DEVELOPMENT FEES, PUMP STATION FEES, AND OTHER RELATED FEES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009”. Mr. Segrave moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEWER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on second reading, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on second reading, seconded by Mr. Brown. Upon inquiry on the estimated average increase to users, Tim Wilson, BOPU Director, stated the average

household water user will see an increase of approximately \$2.72 per month. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING ORDINANCE NO. 3763 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE.” Mr. Segrave moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING ORDINANCE NO. 3762 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Mr. Segrave moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 8.40, FOOD AND FOOD SERVICE ESTABLISHMENTS, OF TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE PERTAINING TO THE ADOPTION OF THE WYOMING FOOD SAFETY RULE 2006 EDITION, AS AMENDED, ALSO KNOWN AS THE CHEYENNE-LARAMIE COUNTY FOOD RULE, INCLUDING LOCAL AMENDMENTS.” John Fafoutakis questioned whether the ordinance involves food establishment inspections. Gus Lopez, Director, Cheyenne-Laramie County Health Dept., advised the ordinance does not affect inspections; it is a housekeeping measure to update City code to clarify adoption of the current Wyoming Food Service Code sanitation standards. Mr. Collins moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS TRACTS 2 AND 3, SKYLINE TRACTS; SYCAMORE RD. AND SKYLINE DR. ADJACENT TO SAID TRACTS 2 AND 3, A SUBDIVISION OF SECTION 18, T.14N., R.66W. OF THE 6TH P.M. LARAMIE COUNTY, WYOMING (LOCATED N. OF AND ADJACENT TO STOREY BLVD., E. AND W. OF SYCAMORE RD.) – referred to Public Services Committee.

“A RESOLUTION REQUIRING THE MAYOR TO DIRECT PARKS DIVISION TO RECLAIM AND REVEGETATE THE AREA OF LIONS PARK DISTURBED BY THE RECONSTRUCTION OF CENTRAL AVENUE.” Mayor Spiker announced the item was inadvertently omitted from the last Finance Committee meeting agenda and referred the resolution back to Finance Committee for review and recommendation.

“A RESOLUTION DESIGNATING RUDY T. APODACA AS AGENT FOR THE CITY OF CHEYENNE FOR THE PURPOSE OF ORGANIZING AND HOLDING A SURPLUS MUNICIPAL PROPERTY AUCTION AT A TIME CONVENIENT FOR THE CITY AND WESTERN AUCTION.” Mr. Segrave moved to adopt, seconded by Mr. Valdez. Upon inquiry, Rudy Apodaca, Purchasing Director, reviewed generally the different types of auction items. Motion carried. Voting “yes” – all members of the governing body. (#5042)

“A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR TRANSPORTATION ENHANCEMENT ACTIVITIES-LOCAL (TEAL) FUNDS FOR CONTINUATION OF THE GREENWAY SYSTEM; SPECIFICALLY A SOFT SURFACE TRAIL IN SOUTHEAST CHEYENNE.” ~~(COUNTY-SPECIFIC PURPOSE-OPTIONAL TAX).~~” Mr. Segrave moved to adopt, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body. (#5043)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO SIGN A FINAL PLAT FOR ROSSMAN ELEMENTARY SCHOOL, A REPLAT OF A PORTION OF INTERIOR HEIGHTS ADDITION, 2ND FILING, SITUATED IN THE SE¼ OF SECTION 7, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED AT THE NW CORNER OF THE INTERSECTION OF WALTERSCHEID BLVD. AND W. COLLEGE DR.)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BLVD. SITUATED IN A PORTION OF THE NE¼ OF SECTION 7, AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W., OF THE 6TH P.M. AND A PORTION OF W. JEFFERSON RD. LINE BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE S. GREELEY HWY. AND THE WEST LINE OF TRACT 16, ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION SUPPORTING THE CHEYENNE TRANSIT PROGRAM’S BOARDING TRANSITION TO SIGNED “DESIGNATED BOARDING AREAS,” AMENDING THE FIXED ROUTES OF THE CHEYENNE TRANSIT BUSES AND RECOGNIZING THE FIVE-YEAR TRANSPORTATION DEVELOPMENT PLAN (DOCUMENT TITLED CTP TRANSIT DEVELOPMENT PLAN AND COORDINATION STUDY) AS A FLEXIBLE PLANNING TOOL” – referred to Finance Committee (sponsor - Mr. Pierson).

[CA] “A RESOLUTION AUTHORIZING THE FILING OF AN APPLICATION WITH THE FEDERAL TRANSIT ADMINISTRATION, AN OPERATING ADMINISTRATION OF THE UNITED STATES DEPARTMENT OF TRANSPORTATION, FOR FEDERAL TRANSPORTATION ASSISTANCE AUTHORIZED BY TITLE 49, UNITED STATES CODE, SECTION 5307” – referred to Finance Committee (sponsor - Mr. Pierson).

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING DEPARTMENT OF TRANSPORTATION FOR A WYOMING RURAL PUBLIC TRANSPORTATION PROGRAM GRANT, FOR THE PURPOSE OF ASSISTING IN PROVIDING THE LOCAL MATCH FOR OPERATING FUNDS FOR THE CITY OF CHEYENNE FOR ITS TRANSIT PROGRAM, AS AUTHORIZED BY 49 U.S.C. §5311” – referred to Finance Committee (sponsor - Mr. Pierson).

[CA] A RESOLUTION REAPPROPRIATING THE FISCAL YEAR 2008 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §16-4-112 AND §16-4-

113” – referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION OF APPROVAL BY THE CITY OF CHEYENNE, WYOMING, OF THE ISSUANCE BY LARAMIE COUNTY, WYOMING, OF A FIRST MORTGAGE REVENUE BOND (PEAK WELLNESS CENTER, INC. PROJECT), IN A PRINCIPAL AMOUNT NOT TO EXCEED \$4,150,000.00, THE PROCEEDS OF WHICH WILL BE USED TO REFINANCE AN OUTSTANDING CONSTRUCTION LOAN RELATING TO THE REMODELING AND FURNISHING OF A FACILITY LOCATED AT 510 W. 29TH ST., CHEYENNE, WY, FOR USE AS A CLINIC TO HOUSE THE YOUTH SERVICES DIVISION AND ADMINISTRATIVE OFFICES FOR THE LARAMIE COUNTY PEAK WELLNESS CENTER IN CHEYENNE, WY, A WYOMING NON-PROFIT ORGANIZATION” – referred to Finance Committee (sponsor - Ms. Broyles).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

County Preliminary Plat for Jacoby Flats Subdivision, Cheyenne Irrigated Gardens, Tract 5, Laramie County, WY (located at 2014 Gordon Rd., Cheyenne, WY). Mr. Collins moved to acknowledge receipt with staff recommendation #1, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body.

[CA] City Preliminary Plat for North Cheyenne Community Park, Second Filing being a replat of North Cheyenne Community Park, Cheyenne, WY (located N. of and adjacent to Storey Blvd., E. of and adjacent to Chief Washakie Ave.) – referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

Contract between the City of Cheyenne, Police Department, and Cheyenne Regional Airport Board, for law enforcement services. Mr. Segrave moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#5256)

Lease agreement between the City of Cheyenne, Parks & Recreation Department, and Cheyenne Junior League Baseball, Inc., to lease the Cheyenne Junior League Complex and Cheyenne Junior League Building. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5257)

Agreement between the City of Cheyenne and Cheyenne Symphony Orchestra, for use of the Civic Center for youth education concerts. Mr. Segrave moved to approve in the amount of \$7,500.00, seconded by Mr. Pierson. Chloe Illoway, Executive Director, Cheyenne Symphony, advised the concerts are provided to approximately 3,000 Laramie County 5th and 6th grade students, including parochial and home-schooled students. Motion carried. Voting “yes” – all members of the governing body. (#5258)

Agreement between the City of Cheyenne and Cheyenne Symphony Orchestra, for use of the Civic Center for the 2008-2009 concert season. Mr. Segrave moved to approve in the amount of

\$3,200.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#5259)

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, for the lease of a transit bus – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide cooperative transit services – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter, for animal control services – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter, for animal shelter services – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and NextMedia Outdoor, Inc., for the purchase of advertising space on CTP buses – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Laramie County for Municipal Court Security Services – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Housing Authority, Peak Wellness Center, Inc., and Peak Wellness Center, Inc., Alcohol Receiving Center, for human services in the community – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Youth Alternatives, and Laramie County, for juvenile court staffing and pretrial services – referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5100 between the City of Cheyenne and Michael J. Means, M.D., d/b/a MJMPC, for professional services as the Medical Director for the Fire and Rescue Department. Mr. Segrave moved to approve, seconded by Mr. Brown. Mr. Segrave moved to amend by substitute, seconded by Mr. Brown. It was advised the substitute specifies the payment amount of \$5,000/mo. (total amount not to exceed \$60,000.00), and clarifies the contract term. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5100)

Contract Modification No. 1 to Contract No. 5045 between the City of Cheyenne and Ayres Associates, for construction engineering and management services for the Dry Creek-Sheridan Reach Flood Control Improvement Project (2003-2006 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$365,200.00, seconded by Mr. Valdez. Mr. Segrave moved to amend by substitute, seconded by Mr. Valdez. It was advised the substitute includes clerical and numbering

corrections and clarifications. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5045)

[Contract Modification No. 1 to Contract No. 5181 between the City of Cheyenne, Municipal Court, and New World Systems, for additional services for the AS/400 court software conversion. Mr. Segrave moved to approve in an amount not to exceed \$30,000.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#5181)

[CA] Contract Modification No. 1 to Contract No. 5244 between the City of Cheyenne and JTL Group, Inc. d/b/a Knife River for median paving on Missile Drive (2003-2006 1% Sales Tax) – referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-15-08 for a contract between the City of Cheyenne and Tarco, Inc. (Arvada, CO), for the Dry Creek-Sheridan Reach Flood Control Improvement Project (2007-2010 1% Sales Tax). Mr. Segrave moved to accept the bid submitted by Tarco, Inc. in an amount not to exceed \$3,929,611.00 (includes Alternate #1), seconded by Mr. Valdez. Upon inquiry, Nathan Beauheim, Traffic Engineer, advised the proposed work location involving Alternate #1 is off of Windmill Rd. approximately 200-300 ft. north of Prairie View Golf Course, and stated the bid includes installing a pedestrian underpass underneath Windmill Rd. for the Greenway system and connecting it to the existing trail to the west; bid includes lighting. Upon inquiry, Jeff Wiggins, Parks and Recreation Dept., noted there currently is no funding in place to extend the Greenway path eastward, however, planning is underway to do so. He explained the contract provides an opportunity for cost savings by doing the underpass work in conjunction with road work for re-alignment for the drainage way. City Treasurer Barb Dorr verified project funding is from the current 5th penny 1% sales tax. In response to concern expressed with past flooding conditions at Prairie View Golf Course due to airport runway water runoff, Mr. Beauheim stated the drainage project will assist in capturing and conveying runoff water into the creek. Motion carried. Voting “yes” – all members of the governing body. (#5260)

Consideration of Bid #M-30-08 for a contract between the City of Cheyenne and Northstar Concrete, Inc. (Loveland, CO), for the East Cheyenne Greenway Phase IIIa Project (1% Specific Purpose Sales & Use Tax). Dan Hawkins, Knife River, requested a review of the bid documents, expressing concern that the proposed successful bidder submitted incomplete bid information on sub-contractor percentages. Rudy Apodaca, Purchasing Director, reviewed bid requirements; explained disclosure of sub-contractor percentages is mostly used in determining the 5% in-state preference (pursuant to state law) for Wyoming bidders, and provided examples of other bids approved involving non-completion of sub-contractor percentages. He advised the City reserves the right to reject any or all proposals or waive any formalities or irregularities in proposals received. Upon inquiry, he stated his recommendation would be to move forward with the low bid received as lack of disclosure of the percentages by the proposed successful bidder does not warrant denial of the bid submitted. Jeannie Gebhart, Knife River, questioned items included in the bid document form but not required

to be completed. Mr. Segrave advised there was no recommendation from Finance Committee. Mr. Segrave moved to accept the bid received from Northstar Concrete, Inc. in an amount not to exceed \$185,757.00, seconded by Mr. Brown. Discussion followed on bid document requirements, clarification of document wording for future bids, setting a precedent, and sub-contractor percentages. In response to query concerning the Greenway project, Jeff Wiggins, Parks & Recreation Dept., provided information on the proposed path alignment from 12th & College to the Henderson drainage area, drainage area ownership and public access areas. Discussion followed on the low bid received with the next lowest bid reflecting an increased cost of approximately \$40,000, preferential treatment, in-state vs. out-of-state bidders, and bid documents lacking sub-contractor percentage figures. Mr. Apodaca confirmed the issue involving sub-contractor percentages is a moot point relative to the agenda item as the percentages are only important if a Wyoming firm is involved as a bidder and out-of-state sub-contractors to be used exceed 30%. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case, Mr. Laybourn and Dr. Rinne voting “no.” (#5261)

Consideration of Bid #R-29-08 for furnishing eleven new 2008 Ford Crown Victorias, from Greiner Ford (Casper) and three new 2008 Ford Expeditions with police package from Laramie Peak Motors (Laramie) for the Police Department (2007-2010 1% Sales Tax). Mr. Segrave moved to accept the bids submitted by Greiner Ford, in an amount not to exceed \$249,590.00, and Laramie Peak Motors, in an amount not to exceed \$73,964.46, for a total bid amount of \$323,554.46, seconded by Mr. Valdez. Upon inquiry, Rob Korber, Police Department, provided information on staff assigned vehicles, mileage, and value of vehicles as trade-ins vs. disposal through the City auction. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no.”

Consideration of Bid #R-30-08 for furnishing and installing miscellaneous police car equipment from Wireless Advanced Communications, Inc., Evans, CO, for the Police Department (2007-2010 1% Sales Tax). Mr. Segrave moved to accept the bid in an amount not to exceed \$148,156.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

Consideration of Bid #R-33-08 for furnishing eighteen new Panasonic Toughbook laptop computers for the Fire & Rescue Department (2003-2006 1% Sales Tax). Mr. Segrave moved to accept the bid submitted by CDW-Government, Inc., Veron Hills, IL, in an amount not to exceed \$62,626.00, seconded by Mr. Brown. Upon inquiry, Jeff Pallack, Fire & Rescue Dept., clarified funding is in conjunction with a Fire Act grant and the new fire records management system to be implemented. Upon inquiry, Theresa Snyder, Information Technology Director, advised the laptops are “hard and tough”, reinforced, and are constructed to be extremely durable. Motion carried. Voting “yes” – all members of the governing body.

[CA] Consideration of Bid #M-27-08 for a contract between the City of Cheyenne and JTL Group, Inc. d/b/a Knife River, for the fiscal year 2008 intersection repair project (2007-2010 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #M-32-08 for a contract between the City of Cheyenne and Horton Rainbow Enterprises Construction, for the Cheyenne Youth Activity and Community Center Demolition and Abatement Package Project (Grants and 1% Specific Purpose Sales & Use Tax) – referred to Finance Committee.

[CA] Consideration of Bid #M-33-08 for a contract between the City of Cheyenne and S&S Builders, LLC, for the utility vehicle wash facility for the Street & Alley Shop at 110 Cleveland Place (2003-2006 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #R-26-08 for one remanufactured lazer tag system from Interspher International, Inc. for the City of Cheyenne Taco Johns Event Center (2007-2010 1% Sales Tax & Ice and Events Center Lazer Tag) – referred to Finance Committee.

[CA] Consideration of Bid #R-34-08 for 4 new medium/heavy duty, body on chassis transit buses from Intermountain Coach for the City of Cheyenne, Transit Division, which includes the mobile digital video recorders (FTA Transit Development Grant) – referred to Finance Committee.

[CA] Consideration of Bid #R-35-08 for furnishing 95 1½ cubic yard steel refuse containers from Sani-Pak Environmental for the Sanitation Department – referred to Finance Committee.

APPOINTMENTS:

Appointment of Mary Aragon to the Public Transit Advisory Board. Mr. Pierson moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Spiker who did not vote (Mayoral appointment).

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held June 23, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as the West 60’ of the East 120’ of the South 120’ of Tract 336, Sunnyside Addition, Seventh Filing, Laramie County, WY.

Announcement was made of a Public Hearing to be held June 23, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as the northerly portion of Lot 1, Block 1, inclusive of the 16’ utility easement, Rogers Subdivision, and Lots 3 through 5, and the northerly half of adjacent vacated alley, Block 2, Coulson Addition, Laramie County, WY.

Announcement was made of a Public Hearing to be held June 23, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as Lot 16, Block 1, Downey Addition, Laramie County, WY.

Announcement was made of a Public Hearing to be held June 23, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as public road and alley right-of-way situated in the NW¼ of Section 27, T.14N., R.66W., of the 6th P.M., Laramie County, WY (located N. of Pershing Blvd., S. of Dell Range Blvd., E. of Grove Dr. and W. of College Dr.).

Announcement was made of a Public Hearing to be held Monday, June 16, 2008 at 5:00 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2009.

Announcement was made of a Special Session of the Governing Body to be held Monday, June 16, 2008 at 5:15 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2009.

Announcement was made of the appointments of Larry Atwell and Janet Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board, Marty Crowe to the Contractor Licensing Board, and Marty Griffith to the Greenway Advisory Committee, to be confirmed June 23, 2008.

Announcement was made of the reappointments of Jo Butler, Jay Guerin, Dick Krahenbuhl, Bebe Molway, Bradley Oberg, Carol Matteson-Pascal, Liberty Blain, Doyle Travis, Tom DeHoff, and Abby Yenco to the Greenway Advisory Committee, to be confirmed June 23, 2008.

OTHER CITY BUSINESS:

John Fafautakis complimented Cheyenne Symphony Orchestra for providing local students with quality concert opportunities, and expressed concerns with the City's bid response documentation relative to action taken earlier in the meeting.

Rudy Apodaca, Purchasing Director, advised effective July 1, 2008, pursuant to recent legislative changes to state statute, the threshold for requiring the bid process will change from \$20,000.00 to \$35,000.00. Concern was expressed regarding the increased amount.

Pursuant to inquiry concerning status of the issuance of bids for the Deming-Walterscheid reconstruction project, Ken Lewis, City Engineer, provided project information, indicating final plans are being reviewed and the project should be advertised for bids in the near future, and explained circumstances involving determination of bid response and construction time frames. Upon further inquiry, Mr. Lewis reviewed the status of the proposed Carey Ave. extension project with regard to the local Gunslinger's seasonal performance (Old Town Mall) area, advising the project is designed but a funding source has yet to be designated prior to seeking governing body approval for the project. Upon further inquiry later in the meeting, Mr. Lewis and Mayor Spiker provided information on anticipated project costs and staff communication with the Gunslingers group on optional performance sites.

Upon inquiry, Mike Abel, Public Works Director, provided information on downtown concrete repairs and work time frame, and stated the budget for the program is funded through 5th Penny Sales Tax.

Upon inquiry regarding information on the City's cash reserves, City Treasurer Barb Dorr advised she would provide information on the amount of reserves prior to the Special (budget) Session, indicating she wished to provide the most accurate and up-to-date information possible. Following comments, Ms. Dorr stated she would compile the information as soon as possible.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:28 p.m.

Submitted by,

Carol A. Intlekofer, CMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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